

25NNCV09140 25NNCV09140

County: los-angeles

Division: Civil Law and Motion

Department: E

Hearing date: 2026-06-25

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=GLN%2CE%2C06%2F25%2F2026

Source SHA-256: df69120d87f526ffb779eeecfa14535466f53f126b300ee63b342146ef92eeb7

Case Number: 25NNCV09140 Hearing Date: June 25, 2026 Dept: E

Case No:

25NNCV09140

Hearing Date: 06/25/2026 – 8:30 a.m.

Trial

Date: UNSET

Case

Name: TIFFANY BUILDERS, LLC., v.

CALVARY BAPTIST CHURCH OF BURBANK, INC., ET AL.

[TENTATIVE RULING ON

DEMURRER & MOTION TO STRIKE]

RELIEF REQUESTED

Defendant, Glen Oaks Escrow Company,

demurs to the seventh cause of action (fraudulent concealment) in the First

Amended Complaint (FAC) pursuant to CCP §§ 430.10(e) [failure to state

sufficient facts] and 430.10(f) [uncertainty].

PROCEDURAL ANALYSIS

Moving Papers: Notice/Demurrer

Opposition Papers: Opposition

Reply Papers: Reply

Meet and Confer

A party filing a demurrer “shall meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.” (CCP, § 430.41(a).) “The parties shall meet and confer at least five days before the date the responsive pleading is due. If the parties are not able to meet and confer at least five days prior to the date the responsive pleading is due, the demurring party shall be granted an automatic 30-day extension of time within which to file a responsive pleading, by filing and serving, on or before the date on which a demurrer would be due, a declaration stating under penalty of perjury that a good faith attempt to meet and confer was made and explaining the reasons why the parties could not meet and confer.” (CCP, § 430.41(a)(2).)

Failure to sufficiently

meet and confer is not grounds to overrule or sustain a demurrer. (CCP, § 430.41(a)(4).)

Here, Defendant’s counsel

appears to have met and conferred. (See Coe Decl., ¶¶ 2-5.)

LEGAL STANDARDS FOR DEMURRERS

Demurrer – Sufficiency

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda, (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. (Taylor v. City of Los Angeles Dept. of Water and Power (2006) 144 Cal.App.4th 1216, 1228.) The court “treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law” (Berkley v. Dowds (2007) 152 Cal.App.4th 518, 525.)

In a demurrer proceeding,

the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) A demurrer tests the

pleadings alone and not the evidence or other extrinsic matters; therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. (Code Civ. Proc., §§ 430.30, 430.70.) The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action. (Hahn, *supra*, 147 Cal.App.4th at 747.)

The general rule is that the plaintiff need only allege ultimate facts, not evidentiary facts. (Doe v. City of Los Angeles (2007) 42 Cal.4th 531, 550.) “All that is required of a plaintiff, as a matter of pleading ... is that his complaint set forth the essential facts of the case with reasonable precision and with sufficient particularity to acquaint the defendant with the nature, source and extent of his cause of action.” (Rannard v. Lockheed Aircraft Corp. (1945) 26 Cal.2d 149, 156-157.)

On demurrer, a trial court has an independent duty to “determine whether or not the ... complaint alleges facts sufficient to state a cause of action under any legal theory.” (Das v. Bank of America, N.A. (2010) 186 Cal.App.4th 727, 734.) Demurrers do not lie as to only parts of causes of action, where some valid claim is alleged but “must dispose of an entire cause of action to be sustained.” (Poizner v. Fremont General Corp. (2007) 148 Cal.App.4th 97, 119.) “Generally it is an abuse of discretion to sustain a demurrer without leave to amend if there is any reasonable possibility that the defect can be cured by amendment.” (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349.)

Demurrer – Uncertainty

A special demurrer for uncertainty, CCP section 430.10(f), is disfavored and will only be sustained where the pleading is so bad that defendant cannot reasonably respond—i.e., cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed against him/her. (Khoury v. Maly's of Calif., Inc. (1993) 14 Cal.App.4th 612, 616.) Moreover, even if the pleading is somewhat vague, “ambiguities can be clarified under modern discovery procedures.” (Ibid.)

TENTATIVE

RULING DEMURRER

Plaintiff, Tiffany Builders, LLC, filed
a complaint on 12/22/2025.

Plaintiff filed the FAC on 4/10/2026.

The Defendants listed in the FAC are:

(1) Calvary Baptist Church of Burbank, Inc.; (2) Glen Oaks Escrow Company; and
(3) Eduard Khachatryan, dba Luxury Homes International and as Global Equity
Partners.

Plaintiff's FAC lists the following
seven causes of action: (1) Declaratory Relief; (2) Rescission (Civ. Code §§
1688-1692); (3) Money Had and Received; (4) Breach of Implied Covenant of Good
Faith and Fair Dealing; (5) Breach of Fiduciary Duty; (6) Constructive
Trust/Equitable Lien; and (7) Fraudulent Concealment.

In general, Plaintiff's (Buyer) dispute
involves allegations pertaining to the sale of real property (724 South Glen
Oaks Blvd, Burbank, CA, 91502).

Plaintiff (Buyer) alleges that it and
Seller (Defendant, Calvary Baptist Church of Burbank) negotiated a written
Purchase and Sale Agreement (PSA) (attached as Ex. A in the FAC) for the
purchase of the subject property, wherein the parties would use Prime Time
Escrow. (FAC, ¶ 7-8.)

Plaintiff appears to be alleging that
Defendant, Glen Oaks Escrow Company, was substituted in as the escrow holder in
the PSA, instead of Prime Time Escrow, and that by Defendants substituting Glen
Oaks Escrow Company into the PSA, the PSA is void and should be rescinded
because the PSA was obtained without Plaintiff's mutual consent.

Seventh Cause of Action –
Fraudulent Concealment

Defendant, Glen Oaks Escrow Company, demurs to the seventh cause
of action (fraudulent concealment) in Plaintiff's FAC on grounds of failure to
state sufficient facts and uncertainty.

Both parties' papers are largely unhelpful to the Court because

both parties do one, or multiple, of the following: (1) Make arguments that are difficult to decipher, (2) Cite inapposite legal authority, and/or (3) Make arguments that fail to contextualize the procedural posture of this case.

Exhibit A to FAC

Defendant, Glen Oaks Escrow Company, points to the PSA that is attached as Exhibit A in Plaintiff's FAC.

Defendant argues that because the PSA was signed by Plaintiff, Plaintiff cannot argue that it did not read the PSA, which included Glen Oaks Escrow Company as the escrow holder.

Defendant then cites to *Brown v. Wells Fargo Bank, N.A.* (2008) 168 Cal.App.4th 938, 958-959 (Brown) to argue that a plaintiff cannot assert he was a victim of fraud after signing a contract. Defendant quotes a portion from Brown that states, "Generally, it is not reasonable to fail to read a contract; this is true even if the plaintiff relied on the defendant's assertion that it was not necessary to read the contract." (*Brown v. Wells Fargo Bank, N.A.* (2008) 168 Cal.App.4th 938, 959 citing *Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 423-424.)

The Court does not find Defendant's argument, with respect to Brown, availing.

Defendant appears to be attempting to litigate the merits of the case and ignores the fact that there are six other causes of action in the FAC that Defendant does not demur to.

Although it does appear that Plaintiff signed the PSA that is attached as Exhibit A in the FAC, the seventh cause of action is for fraudulent concealment, not for breach of contract, and the instant case is at the pleading stage.

In Brown, the Court of Appeal held that the trial court erred in ruling on a motion to compel arbitration when the trial court failed to make a finding on whether constructive fraud existed, stating that this was an issue for the jury. (*Brown v. Wells Fargo Bank, N.A.* (2008) 168 Cal.App.4th 938, 959.) The Court of Appeal held that this was error, as the trial court was required to resolve the factual issues raised by the petition

to compel arbitration, not simply determine whether sufficient evidence existed to go to a jury. (Id.)

The instant hearing is a hearing on a demurrer; it is not a hearing on a motion/petition to compel arbitration.

A trial court ruling on a petition to compel arbitration must resolve the factual issues raised by the petition, not simply determine whether factual disputes exist. (Brown v. Wells Fargo Bank, N.A. (2008) 168 Cal.App.4th 938, 952-953 citing Engalla v. Permanente Medical Group, Inc. (1997) 15 Cal.4th 951, 972-973.)

Defendant's attempt to get the Court to resolve factual disputes at this demurrer hearing is improper. We treat the demurrer as admitting all material facts properly pleaded, but not contentions, deductions, or conclusions of law; we give the complaint a reasonable interpretation, reading it as a whole and its parts in their context. (Berkley v. Dowds (2007) 152 Cal.App.4th 518, 525 citing Blank v. Kirwan (1985) 39 Cal.3d 311, 318.)

Fraudulent Concealment, Continued

Defendant argues that Plaintiff fails to allege sufficient facts to state a cause of action for fraudulent concealment.

The parties' arguments on this issue are entirely unhelpful to the Court.

Plaintiff's FAC alleges in relevant part:

75.

Defendants Calvary Baptist Church, Broker Khachatryan, and Glen Oaks Escrow had superior knowledge of facts material to Buyer's decision to proceed, including: the prior relationship between Glen Oaks and Seller; the continued involvement of the same escrow personnel despite representations to the contrary and the risk that escrow's neutrality was compromised.

76.

Defendants owed Plaintiff a duty to disclose these facts because they had exclusive knowledge and actively made partial representations intended to

induce reliance.

77.

Defendants intentionally concealed these material facts and represented falsely that the conflicted employee “was no longer there,” intending that Plaintiff rely on and proceed to deposit funds.

78. Defendants’ concealment and misrepresentations were made to induce Plaintiff to proceed with a transaction for the acquisition of the Property and to deposit funds in connection therewith.

79. Plaintiff reasonably relied on those assurances and proceeded to sign the altered DocuSign PSA.

80. Defendants’ concealment and misrepresentations were made with intent to defraud and to secure control of Plaintiff’s \$150,000 deposit.

81. As a proximate result of this fraud, Plaintiff has sustained damage in the amount of \$150,000 plus consequential losses and is entitled to exemplary damages under Civil Code §3294 for Defendants’ malicious and oppressive conduct.

(FAC, ¶¶
75-81.)

The parties’ arguments are unhelpful to the Court because the parties appear to be talking at each other without addressing each other’s arguments or relevant legal authority.

For example, Defendant argues that Plaintiff does not specifically plead fraud, and that fraud requires pleadings facts which show how, when, where, to whom, and by what means the fraud occurred. (Def. Mot. p. 5-6 citing *Stansfield v. Starkey* (1990) 220 Cal.App.3d 59, 73.)

Further, Defendant argues that when as here, an action is pled against a corporation or other entity defendant, a plaintiff must allege the names of the persons who made the misrepresentation, their authority to speak on behalf of the corporation, whom they spoke to, what was said, and when it

was said. (Def. Mot., p. 6 citing *Lazar v. Superior Court* (1996) 12 Cal.4th 631, 645.)

The problem with Defendant's argument is that Defendant cites the pleading standard for fraud causes of action with respect to fraudulent misrepresentations, but Plaintiff's FAC labels the seventh cause of action as a cause of action for fraudulent concealment.

For example, Defendant argues that fraud must allege facts which show how, when, where, to whom, and by what means the fraud occurred, but Defendant cites to *Stansfield*, and *Stansfield* dealt with the pleading requirement with respect to fraudulent misrepresentations, not fraudulent concealment.

Likewise, to the extent that Defendant argues that, with respect to a corporate employer, a plaintiff must allege the names of the persons who made the allegedly fraudulent representations, their authority to speak, to whom they spoke, what they said or wrote, and when it was said or written, Defendant cites to *Lazar*, but *Lazar* isn't a case for fraudulent concealment, and *Lazar* cites to *Tarmann v. State Farm Mut. Auto. Ins. Co.* (1991) 2 Cal.App.4th 153, 157, and *Tarmann* also dealt with fraudulent representations, not fraudulent concealment.

However, the Court will hear argument because despite Plaintiff's label of fraudulent concealment for the seventh cause of action, paragraphs 75, 78, and 80 refer to representations and misrepresentations. It is entirely unclear what those representations/misrepresentations are.

Labels are not determinative.

"The subject matter of an action and the issues involved are determinable from the facts alleged rather than from the title of the pleading or the character of damage recovery suggested in connection with the prayer for relief." (*Siciliano v. Fireman's Fund Ins. Co.* (1976) 62 Cal.App.3d 745, 751 quoting *Buxbom v. Smith*, 23 Cal.2d 535, 542.)

Therefore, the Court to hear argument as to whether or not the seventh cause of action is for fraudulent concealment or fraudulent misrepresentation.

If the cause of action is for fraudulent misrepresentation,
Plaintiff did not plead facts sufficient to constitute a cause of action.
Plaintiff failed to meet the specificity requirements for a cause of action for
fraudulent misrepresentation.

Neither party points to what the apparent standard for pleading
fraudulent concealment is.

The pleading standard for fraudulent concealment appears to be as
follows:

“[T]he elements of an action for fraud and
deceit based on concealment are: (1) the defendant must have concealed or
suppressed a material fact, (2) the defendant must have been under a duty to
disclose the fact to the plaintiff, (3) the defendant must have intentionally
concealed or suppressed the fact with the intent to defraud the plaintiff, (4)
the plaintiff must have been unaware of the fact and would not have acted as he
did if he had known of the concealed or suppressed fact, and (5) as a result of
the concealment or suppression of the fact, the plaintiff must have sustained
damage.” (Hahn v. Mirda (2007) 147 Cal.App.4th 740,748.) “Fraud must be
pleaded with specificity rather than with “general and conclusory”
allegations.” (Small v. Fritz Companies, Inc. (2003) 30 Cal.4th 167,
184.)

(Boschma v. Home Loan
Center, Inc. (2011) 198 Cal.App.4th 230, 248.)

Plaintiff's opposition is
borderline incomprehensible.

In the Court's view, it
would have made sense for Plaintiff to explain how it sufficiently pled
fraudulent concealment by specifically pointing to the exact paragraphs in the
FAC that satisfy each element that comprises a claim for fraudulent
concealment.

Plaintiff's opposition does
nothing of the sort.

At the hearing, if

Plaintiff plans to argue that it sufficiently pled fraudulent concealment, Plaintiff should plan to point to the exact paragraph, or paragraphs, that satisfies each element of a cause of action for fraudulent concealment.

The Court will also hear argument because the case law is also particularly unhelpful with respect to what must be pled for a cause of action for fraudulent concealment.

For example, Boschma, which deals with a cause of action for fraudulent concealment, explains that fraud must be pleaded with specificity rather than with general and conclusory allegations, but problematic with Boschma is that it cites Small, and Small dealt with fraudulent misrepresentation. Therefore, the case law is somewhat unclear on the level of specificity that must be alleged for a claim of fraudulent concealment.

The Court to hear argument for the reasons explained above. The Court is inclined to SUSTAIN the demurrer and grant leave to amend; however, the Court will hear argument. The parties are encouraged to meet and confer about the relevant pleading standard and what exactly it is that Defendants want pled so that Plaintiff can properly plead the cause of action in order to avoid needless law and motion practice.

MOTION TO STRIKE

RELIEF REQUESTED

Defendant, Glen Oaks Escrow Company, moves to strike the following portions from Plaintiff's FAC:

1. Paragraph

81, page 12:9-11: "As a proximate result of this fraud, Plaintiff has sustained damage in the amount of \$150,000 plus consequential losses and is entitled to exemplary damages under Civil Code §3294 for Defendants' malicious and oppressive conduct."

2. Prayer

For Relief, page 12:24: "6. Exemplary damages under Civil Code §3294 for fraudulent concealment."

(Def. Mot., p. 2.)

LEGAL

STANDARD – MOTION TO STRIKE

The court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (CCP, § 436(a).) The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (CCP, § 436(b).)

A motion

to strike cannot be based upon the grounds that a complaint fails to state facts sufficient to constitute a cause of action, but instead is properly based on grounds of superfluous or abusive allegations, or improprieties in form or procedure. (Ferraro v. Camarlinghi (2008) 161 Cal.App.4th 509, 528-29.)

The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (CCP, § 437; Turman v. Turning Point of Central California, Inc. (2010) 191 Cal.App.4th 53, 63 [“judges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth”].)

Further, CCP § 431.10(a)-(c) states as follows:

(a) A material allegation in a pleading is one essential to the claim or defense and which could not be stricken from the pleading without leaving it insufficient as to that claim or defense.

(b) An immaterial allegation in a pleading is any of the following:

(1) An allegation that is not essential to the statement of a claim or defense.

(2) An allegation that is neither pertinent to nor supported by an otherwise sufficient claim or defense.

(3) A demand for judgment requesting relief not supported by the allegations of the complaint or cross-complaint.

(c) An “immaterial allegation” means “irrelevant matter” as that term is used in Section 436.

(CCP, § 431.10(a)-(c).)

TENTATIVE RULING MOTION TO STRIKE

Defendant seeks to strike two portions in Plaintiff's FAC that pertains to punitive damages.

Defendant argues that Plaintiff improperly pleads vague and conclusory allegations of fraudulent conduct and improperly seeks punitive damages based on specious allegations.

Defendant argues that Plaintiff's FAC is entirely devoid of any specific conduct by Defendant, Glen Oaks Escrow, and instead the FAC vaguely makes vague collective allegations to “Defendants” without distinction to what specifically, Defendant, Glen Oaks Escrow, did.

In an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example by way of punishing the defendant. (Civil Code, § 3294(a).)

“‘Malice’ means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (Civil Code, § 3294(c)(1).)

“‘Oppression’ means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights. (Civil Code, § 3294(c)(2).)

“‘Fraud’

means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury. (Civil Code, § 3294(c)(3).)

The Court to hear argument. If the Court sustains the demurrer to the seventh cause of action for fraudulent concealment and grants leave to amend, it will also GRANT the motion to strike with leave to amend. If the Court overrules the demurrer, the Court will likely DENY the motion to strike on the basis that the Plaintiff sufficiently pled fraud.